

Arvind Sharma & Others vs State Of Himachal Pradesh & Another on 13 December, 2024

Author: Sushil Kukreja

Bench: Sushil Kukreja

1

Neutral Citation No.

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr.MMO No. 411 of 2024 a/w
Cr. Revision No. 600 of 2024
Date of Decision: 13.12.2024

1. Cr.MMO No. 411 of 2024:

Arvind Sharma & others

Versus

State of Himachal Pradesh & another

....Peti

...Respond

2. Cr. Revision No. 600 of 2024:

Rattan Chand Sharma & others

Versus

State of Himachal Pradesh & another

....Peti

...Respondents

Coram

Hon'ble Mr. Justice Sushil Kukreja, Judge.

Whether approved for reporting?¹

1. Cr.MMO No. 411 of 2024:

For the petitioners:

For respondent No 1/State:

Mr. Karun Negi, Advocate.

Mr. Navlesh Verma, Additional
Advocate General, with Mr. Gautam
Sood, and Mr. Raj Negi, Depty
Advocates General.

For respondent No. 2:

Mr. Ajay Kochhar, Senior
Advocate, with Mr. Bhairav
Gupta, Advocate.

2. Cr. Revision No. 600 of 2024:

For the petitioners: Mr. Karun Negi, Advocate.
For respondent No 1/State: Mr. Navlesh Verma, Additional
Advocate General, with Mr. Gautam
Sood, and Mr. Raj Negi, Deputy
Advocates General.
For respondent No. 2: Mr. Ajay Kochhar, Senior
Advocate, with Mr. Bhairav
Gupta, Advocate.

Sushil Kukreja, Judge (Oral)

Both the petitions are being taken up together as both the petitions are between the same parties and also the offshoots of matrimonial discord for which FIR No. 160 of 2023, dated 04.09.2023, under Sections 498A, 504, 506 and 34 IPC, was got registered at Police Station Sarkaghat, District Mandi, H.P. by respondent No. 2-Smt. Pooja Sharma and a Private Complaint No. 5 of 2024, under Sections 498A, 504, 506 and 34 IPC, titled as Pooja Sharma vs. Arvind Sharma, was also filed by respondent No. 2-Smt. Pooja Sharma in the Court of learned Additional Chief Judicial Magistrate, Sarkaghat, District Mandi, H.P..

2. Cr.MMO No. 411 of 2024 has been filed by the petitioners, under Section 482 of Cr.P.C. seeking quashing of 3 Neutral Citation No. (2024:HHC:14459) FIR No. 160 of 2023, dated 04.09.2023, under Sections 498A, 504, 506 and 34 IPC, registered at Police Station Sarkaghat, District Mandi, H.P., with a prayer to set-aside the same and to quash further proceedings pending before the Court of learned Additional Chief Judicial Magistrate, Sarkaghat, District Mandi, H.P., and the above petitioners also filed Criminal Revision No. 600 of 2024, under Section 438 of Bharatiya Nagarik Suraksha Sanhita, 2023 (for short "BNSS"), against order dated 10.07.2024, passed in Private Complaint No. 5 of 2024, titled as Pooja Sharma vs. Arvind Sharma, wherein learned Additional Chief Judicial Magistrate, Sarkaghat, District Mandi, H.P., has taken cognizance of the offence under Sections 498A, 504, 506 and 34 IPC, with a further prayer to set-aside the same and to dismiss the complaint.

3. The facts giving rise to the instant petitions are that marriage between petitioner No. 1-Shri Arvind Sharma and respondent No. 2-Smt. Pooja Sharma was solemnized, as per the Hindu rites and customs on 13.10.2021 and out of the said wedlock, no issue was born. After some time of the marriage, due to non-compatibility between petitioner No. 1 4 Neutral Citation No. (2024:HHC:14459) and respondent No. 2, dispute arose between the parties which ultimately resulted in lodging of FIR No. 160 of 2023, dated 04.09.2023, under Sections 498A, 504, 506 and 34 IPC, registered at Police Station Sarkaghat, District Mandi, H.P. by respondent No. 2 against the petitioners. Respondent No. 2-Smt. Pooja Sharma, also filed a Private Complaint No. 5 of 2024, whereupon learned Additional Chief Judicial Magistrate, Sarkaghat, District Mandi, H.P., took

cognizance of the offence under Sections 498A, 504, 506 and 34 IPC, vide order dated 10.07.2024.

4. During the pendency of both the petitions, the parties have compromised the matter and the statements of Shri Arvind Sharma (petitioner No. 1) and Smt. Pooja Sharma (respondent No. 2) have been separately recorded in Cr.MMO No. 411 of 2024 and Cr. Revision No. 600 of 2024.

5. Shri Arvind Sharma (petitioner No. 1) in Cr.MMO No. 411 of 2024 and petitioner No. 3 in Criminal Revision No. 600 of 2024 stated that during the pendency of the proceedings before this Court, the parties have compromised the matter with the intervention of friends and relatives once 5 Neutral Citation No. (2024:HHC:14459) and for all times to come, as per the terms and conditions of the compromise deed, dated 12.12.2024, annexed with Cr.MP No. 5219 of 2024, in Cr.MMO No. 411 of 2024. He has further stated that he shall adhere to and abide by the terms and conditions of the aforesaid compromise and as per the compromise, he and respondent No. 2 will file a joint petition for passing a decree of divorce by mutual consent before learned Additional District Judge-cum-Family Court at Sarkaghat, District Mandi, H.P. within a period of two weeks from today. Smt. Pooja Sharma (respondent No. 2 in Cr.MMO No. 411 of 2024 and Cr. Revision No. 600 of 2024) also got her statement recorded on the similar lines, as stated by petitioner No. 1 above. She further stated that she has no objection if FIR No. 160 of 2023, dated 04.09.2023, under Sections 498A, 504, 506 and 34 IPC, registered at Police station Sarkaghat, District Mandi, H.P., alongwith consequent proceedings, arising out of the said FIR, are quashed and set-aside. She also stated that she has no objection if impugned order of cognizance, dated 10.07.2024, passed by learned Additional Chief Judicial Magistrate, 6 Neutral Citation No. (2024:HHC:14459) Sarkaghat, District Mandi, H.P., in Criminal Complaint No. 05 of 2024, is also set-aside and the complaint is dismissed.

6. I have heard learned counsel for the petitioners, learned Additional Advocate General for respondent No.1/ State as well as the learned Senior Counsel for respondent No. 2 and also gone through the material available on record.

7. In Gian Singh Vs. State of Punjab and others, reported in (2012) 10 SCC 303, explaining that High Court has inherent power under Section 482 of the Code of Criminal Procedure with no statutory limitation, including Section 320 Cr.PC, the Hon'ble Apex Court has held that these powers are to be exercised to secure the ends of justice or to prevent abuse of process of any Court and these powers can be exercised to quash criminal proceedings or complaint or FIR in appropriate cases where offender and victim have settled their dispute and for that purpose no definite category of offence can be prescribed. However, it is also observed that Courts must have due regard to nature and gravity of the crime and criminal proceedings in heinous and serious offences or offences like murder, rape and dacoity etc. should not be quashed despite victim or victim's 7 Neutral Citation No. (2024:HHC:14459) family have settled the dispute with offender. Jurisdiction vested in High Court under Section 482 Cr.PC is held to be exercisable for quashing criminal proceedings in cases having overwhelming and predominately civil flavour particularly offences arising from commercial, financial, mercantile, civil partnership, or such like transactions, or even offences arising out of matrimony relating to dowry etc., family disputes or other such disputes where wrong is basically private or personal nature where parties mutually resolve their dispute amicably. It was also held

that no category or cases for this purpose could be prescribed and each case has to be dealt with on its own merit but it is also clarified that this power does not extend to crimes against society.

8. Further, the Apex Court in Parbatbhai Aahir alias Parbathbhai Bhimsinghbhai Karmur and others vs. State of Gujarat and another, (2017) 9 SCC 641, summarizing the broad principles regarding inherent powers of the High Court under Section 482 Cr.PC. has recognized that these powers are not inhibited by provisions of Section 320 Cr.PC.

8 Neutral Citation No. (2024:HHC:14459)

9. In case Narinder Singh and others vs. State of Punjab and others, reported in (2014) 6 SCC 466 and also in State of Madhya Pradesh vs. Laxmi Narayan and others, (2019) 5 SCC 688, the Hon'ble Supreme Court has summed up and laid down principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercise its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with criminal proceedings.

10. In Madan Mohan Abbot vs. State of Punjab, (2008) 4 SCC 582, the Hon'ble Supreme Court emphasized and advised that in the matter of compromise in criminal proceedings, keeping in view the nature of the case, to save the time of the Court for utilizing to decide more effective and meaningful litigation, a common sense approach, based on ground of realities and bereft of the technicalities of law, should be applied.

11. In the instant case, since the matter has been amicably settled between the parties, therefore, keeping in 9 Neutral Citation No. (2024:HHC:14459) view the nature of the offence, I am of the considered view that no fruitful purpose will be served to continue the proceedings against petitioners/accused, as continuation of the proceedings will be an exercise in futility. The justice in the case demands that the dispute between the parties is put to an end and peace is restored in order to maintain harmonious relations/atmosphere between them.

12. Hence, considering the facts and the circumstances of the case in entirety, I am of the opinion that the present petitions deserve to be allowed for securing the ends of justice and, therefore, the same are allowed. Accordingly, FIR No. 160 of 2023, dated 04.09.2023, under Sections 498A, 504, 506 and 34 IPC, registered as Police Station Sarkaghat, District Mandi, H.P., is quashed and set-aside alongwith all consequent proceedings, arising out of the said FIR. Similarly, order dated 10.07.2024, passed by learned Additional Chief Judicial Magistrate, Sarkaghat, District Mandi, H.P., Criminal Complaint No. 05 of 2024, titled as Pooja Sharma vs. Arvind Sharma, taking cognizance of the offence punishable under Sections 498A, 504, 506 and 34 IPC is also quashed and set-aside and the Criminal Complaint filed by Smt. Pooja Sharma is dismissed.

10 Neutral Citation No. (2024:HHC:14459)

13. Needless to state that the parties shall abide by the terms and conditions of the compromise deed, dated 12.12.2024, copies whereof have been annexed with Cr.MP No. 5219 of 2024, in

Cr.MMO No. 411 of 2024 and with Cr.MP No. 5220 of 2024, in Criminal Revision No. 600 of 2024.

14. In view of the peculiar facts and circumstances of the instant case, since there is no chance of reunion between the parties and also in view of the fact that the very purpose of the compromise may not be frustrated, the learned Additional District Judge-cum-Family Court at Sarkaghat, District Mandi, H.P., is directed to waive off the cooling period, as provided under Section 13B(2) of the Hindu Marriage Act, 1955, in accordance with law, on filing of the joint petition by the parties for passing a decree of divorce by mutual consent.

15. Petition stands disposed of in above terms, so also the pending application(s).

(Sushil Kukreja) th 13 December, 2023 Judge (virender)